

SENATE BILL 2236

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 120, relative to building codes.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-120-101(a)(12), is amended by deleting the subdivision and substituting:

(A) Shall allow a local government to amend adopted building codes after consulting with a registered architect or engineer in the jurisdiction to include up to six (6) family dwellings outside the scope of the adopted building codes for one- and two-family dwellings by establishing minimum prescriptive requirements to address the design and construction of dwellings that conform as follows:

(i) A separate means of egress is provided for each dwelling;

(ii) Dwellings are separated from each other by wall and floor assemblies having not less than a two-hour fire resistance rating; and

(iii) The entire structure does not exceed three (3) stories above grade plane;

(B) In amending the rules pursuant to this subdivision (a)(12), the state fire marshal shall not mandate automatic fire sprinkler systems for up to six-family dwellings; and

(C) Notwithstanding this subdivision (a)(12), local governments may adopt mandatory sprinkler requirements and may permit the use of the National Fire Protection Association (NFPA) 13D standard for up to six-family dwellings.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.